

SOFTWARE MAINTENANCE & SUPPORT AGREEMENT

Contract Reference: SMA-2025-0334

This Software Maintenance and Support Agreement ("Agreement") is entered into as of February 1, 2025 ("Effective Date"), by and between:

SERVICE PROVIDER:	Nexus Software Solutions LLC, a Delaware limited liability company, with its principal place of business at 300 Tech Boulevard, Austin, TX 78759 ("Provider")
CLIENT:	Meridian Financial Services Corp., a Texas corporation, with its principal place of business at 500 Commerce Street, Suite 2200, Dallas, TX 75202 ("Client")

1. DEFINITIONS

- 1.1 "Software" means the proprietary enterprise resource planning system designated as "NexusERP v4.2" and all subsequent versions, updates, and patches covered under this Agreement.
- 1.2 "Support Services" means the technical assistance, bug fixes, patch releases, and maintenance activities described in Exhibit A.
- 1.3 "Business Hours" means 8:00 AM to 6:00 PM Central Time, Monday through Friday, excluding federal holidays.
- 1.4 "Critical Issue" means any defect that renders the Software completely inoperable or causes data corruption.

2. TERM

- 2.1 This Agreement commences on the Effective Date and continues for a period of twenty-four (24) months, expiring on January 31, 2027 (the "Initial Term").
- 2.2 Upon expiration, this Agreement shall automatically renew for successive one-year periods unless either party provides sixty (60) days written notice of non-renewal.

3. SUPPORT SERVICES

- 3.1 Provider shall provide the following tiers of support: (a) Tier 1 — Helpdesk support via phone, email, and ticket portal during Business Hours; (b) Tier 2 — Technical escalation with a 4-hour response SLA; (c) Tier 3 — Engineering-level escalation with 24-hour response SLA.
- 3.2 Critical Issues shall receive a maximum 1-hour initial response, 24 hours per day, 7 days per week, 365 days per year.
- 3.3 Provider shall deliver a minimum of four (4) scheduled maintenance releases and two (2) major version updates per year at no additional charge.

4. FEES AND PAYMENT

4.1 Client shall pay Provider an annual maintenance fee of Forty-Eight Thousand Dollars (\$48,000.00 USD), invoiced quarterly in advance in equal installments of \$12,000.00.

4.2 Invoices are due and payable within thirty (30) days of invoice date. Late payments accrue interest at the rate of 1.5% per month.

4.3 All fees are exclusive of applicable taxes. Client is responsible for all sales, use, and similar taxes.

4.4 Provider may adjust fees annually with a minimum ninety (90) days written notice, not to exceed 5% per year.

5. INTELLECTUAL PROPERTY

5.1 Provider retains all right, title, and interest in the Software and any modifications, improvements, or derivative works, including all associated intellectual property rights.

5.2 Client is granted a non-exclusive, non-transferable license to use the Software solely for its internal business operations during the Term.

5.3 Client shall not reverse engineer, decompile, or disassemble the Software except as permitted by applicable law.

6. CONFIDENTIALITY

6.1 Each party agrees to maintain the confidentiality of the other party's Confidential Information using the same degree of care it uses for its own confidential information, but no less than reasonable care.

6.2 This obligation survives termination of this Agreement for a period of five (5) years.

7. WARRANTIES AND DISCLAIMERS

7.1 Provider warrants that the Support Services will be performed in a professional and workmanlike manner consistent with generally accepted industry standards.

7.2 EXCEPT AS EXPRESSLY SET FORTH HEREIN, PROVIDER DISCLAIMS ALL WARRANTIES, EXPRESS OR IMPLIED, INCLUDING WARRANTIES OF MERCHANTABILITY AND FITNESS FOR A PARTICULAR PURPOSE.

8. LIMITATION OF LIABILITY

8.1 IN NO EVENT SHALL EITHER PARTY BE LIABLE FOR INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES.

8.2 Provider's aggregate liability under this Agreement shall not exceed the fees paid by Client in the twelve (12) months preceding the claim.

9. TERMINATION

- 9.1 Either party may terminate this Agreement upon ninety (90) days written notice.
- 9.2 Either party may terminate immediately upon written notice if the other party materially breaches this Agreement and fails to cure such breach within thirty (30) days of written notice.
- 9.3 Upon termination, Client shall immediately cease use of the Software and certify destruction of all copies.

10. GENERAL PROVISIONS

- 10.1 Governing Law. This Agreement is governed by the laws of the State of Texas, without regard to conflict of laws principles.
- 10.2 Dispute Resolution. The parties agree to first attempt good-faith negotiation for thirty (30) days before initiating arbitration under AAA Commercial Arbitration Rules in Austin, Texas.
- 10.3 Entire Agreement. This Agreement, including Exhibit A (Service Level Agreement), constitutes the entire agreement between the parties and supersedes all prior negotiations and understandings.
- 10.4 Amendments. Any amendment must be in writing and signed by authorized representatives of both parties.
- 10.5 Force Majeure. Neither party shall be liable for delays caused by circumstances beyond its reasonable control.

SIGNATURE PAGE

IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date.

NEXUS SOFTWARE SOLUTIONS LLC

MERIDIAN FINANCIAL SERVICES CORP.

By: _____

By: _____

Name: James R. Thornton

Name: Catherine L. Webb

Title: Chief Executive Officer

Title: Chief Operating Officer

Date: February 1, 2025

Date: February 1, 2025

EXHIBIT A — Service Level Agreement (SLA) details are attached hereto and incorporated by reference.